1. Introduction, acceptance and definitions

1.1 These Terms & Conditions ("Terms") govern your access to and use of the Hungora mobile application, website and any related services, including concierge or phone booking (together, the "Platform"). The Platform is owned and operated by Hungora Technologies Private Limited , a company incorporated in India with its registered office at #30, 2nd Cross St, Thazhambur, Chennai, Tamil Nadu 600130 ("Hungora", "we", "us", "our").

1.2 This document is an electronic record under the Information Technology Act, 2000 and is published in line with Rule 3(1) of the IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021. It does not require a physical or digital signature.

1.3 By downloading, registering on, browsing or making a booking through the Platform, you agree to these Terms, our Privacy Policy, and any offer-specific or programme-specific terms shown on the Platform (together, the "Hungora Policies"). If you do not agree, please do not use the Platform.

1.4 Definitions:

- **User / you**: any person who accesses the Platform, whether registered or not.
- **Diner**: a User who discovers restaurants, makes Reservations or redeems Offers.
- **Restaurant Partner**: a restaurant, cafe, bar or other food and beverage outlet listed on the Platform.
- **Neighbourhood / Regional Partner**: a bank, card issuer, brand, local business or event partner that offers benefits through the Platform.
- **Reservation**: a table booking made through the Platform, free or paid.
- **Offer**: any discount, deal, prepaid voucher, cashback, reward or benefit shown on the Platform.
- **Hungora Wallet / Rewards**: the points, cashback or credits a Diner earns on the Platform, as described in Section 8.101
- **Bill**: the invoice issued by a Restaurant Partner for food, beverages and services consumed.

2. Nature of the platform: Hungora as intermediary

2.1 Hungora is a technology platform that helps Diners discover restaurants, reserve tables, and access Offers, and helps Restaurant Partners reach Diners. Hungora acts only as an intermediary and facilitator between Diners and Restaurant Partners.

2.2 Hungora does not own, operate or manage any listed restaurant. Hungora does not prepare, serve or sell food or beverages, and does not control a restaurant's staff, premises, hygiene, menu, pricing or service.

2.3 The contract for food, beverages and dining services is formed directly between you and the Restaurant Partner when you dine. Hungora is not a party to that contract.

2.4 Restaurant information shown on the Platform (menus, prices, photos, timings, amenities, seating, policies) is supplied by the Restaurant Partner or collected from public sources. Hungora makes reasonable efforts to keep it accurate but does not guarantee it, and is not responsible for changes made by the restaurant.

2.5 Listing, ranking or featuring a restaurant on the Platform is not an endorsement. Sponsored or promoted listings will be labelled as such.

2.6 Hungora may add, change, pause or withdraw any feature, city, Restaurant Partner or Offer at any time.

3. Eligibility and user accounts

3.1 You must be at least 18 years old and competent to contract under the Indian Contract Act, 1872 to register or make a paid booking. Persons under 18 may use the Platform only under the supervision of a parent or legal guardian who accepts these Terms on their behalf.

3.2 Where a booking involves alcohol, you confirm that you and your guests meet the legal drinking age of the state where the restaurant is located. Restaurants may refuse entry or service to anyone who does not.

3.3 You may register using your mobile number (OTP verification), email, or a supported third-party login. You must provide accurate, current and complete information and keep it updated.

3.4 Each person may hold only one Hungora account. Duplicate accounts may be merged, suspended or closed, and any rewards on them forfeited.

3.5 You are responsible for keeping your login credentials and OTPs confidential and for all activity on your account. Tell us immediately at admin@hungora.com if you suspect unauthorised use.

3.6 Your account is personal and non-transferable. Bookings and benefits are for personal, non-commercial use and may not be resold.

4. Restaurant partner responsibilities

4.1 The Restaurant Partner alone is responsible for the food and beverages it serves, including quality, quantity, taste, hygiene, allergen information, and compliance with FSSAI and other food safety laws.

4.2 The Restaurant Partner is responsible for its premises, staff conduct, safety, service standards, waiting times, seating allocation, and honouring confirmed Reservations and Offers it has agreed to on the Platform.

4.3 The Restaurant Partner sets its own menu, prices, taxes, service charges and house policies (for example dress code, child policy, cover charges, entry age, last-order times). You agree to follow these policies when you dine.

4.4 The Restaurant Partner issues the final Bill and is responsible for the taxes on it.

4.5 Complaints about food, service, billing or experience at the restaurant should first be raised with the restaurant. If you report a complaint to Hungora in writing with booking details and supporting evidence, we will share it with the Restaurant Partner, help you reach a resolution where we reasonably can, and may take action on the listing. Hungora is not itself liable for the restaurant's acts or omissions.

4.6 Detailed obligations of Restaurant Partners (listing accuracy, commissions, payouts, deal funding, service levels) are set out in the separate [Hungora Restaurant Partner Agreement].

5. Table reservations and dine-in

5.1 A Reservation is a request to the Restaurant Partner to hold a table for a stated date, time and party size. It is confirmed only when the Platform shows it as "Confirmed" (instantly or after the restaurant accepts it).

5.2 Hungora will share your name, phone number, party size, booking time and any special requests with the Restaurant Partner so it can honour the booking. The restaurant may contact you about your booking.

5.3 Please arrive on time. Restaurant Partners may hold a table for a grace period of [15] minutes after the booked time, after which the table may be released. Seating preferences (window, outdoor, private area) are requests, not guarantees.

5.4 To use a booking-linked Offer, identify yourself as a Hungora Diner and show the booking or payment confirmation at the restaurant before the Bill is generated.

5.5 The Restaurant Partner may cancel or modify a Reservation because of closure, overbooking, emergencies or events beyond its control. We will tell you as soon as we know and, for prepaid bookings, handle refunds under Section 7.

5.6 Menu prices may differ on public holidays, festivals or special events. Hungora is not responsible for such changes.

6. Cancellation, modification and no-show

6.1 You can cancel or modify a free Reservation at any time before the booked time from the "My Bookings" section of the app, or by contacting Hungora support. Hungora does not charge for cancelling a free Reservation.

6.2 Please cancel as early as possible so the table can be offered to others. Rewards are not credited for a Reservation that is cancelled or where the Offer is not used at the restaurant.

6.3 A "no-show" is when you neither arrive within the grace period nor cancel before the booked time. Hungora's no-show policy:

Occurrence (rolling [6] months)	Consequence
1st no-show	Warning notification
2nd no-show	Deduction of [100] reward points, or a [₹100 amount] fee on future paid bookings
3rd no-show	Temporary or permanent suspension of booking rights

6.4 If a no-show was recorded in error (you did dine), write to admin@hungora.com within [7] days with a copy of the Bill or payment proof. If verified, we will reverse the no-show and credit any rewards due.

6.5 Prepaid bookings, deposits and prepaid deals follow the cancellation rules shown at checkout for that booking. Where no rule is shown, they are non-cancellable, except as set out in Section 7.4.

6.6 Restaurant Partners may set their own cancellation or deposit rules for large groups, special events or peak dates. These will be shown before you confirm.

7. Payments, fees and refunds

7.1 **Payment methods.** You may pay for prepaid bookings, deals or restaurant Bills through the Platform using UPI, cards, net banking, wallets or other RBI-approved methods offered at checkout. All payments are in Indian Rupees. Payments are processed by licensed third-party payment gateways; Hungora does not store full card details.

7.2 **Hungora as payment agent.** When you pay a restaurant Bill or deal through the Platform, Hungora collects the amount on behalf of the Restaurant Partner as its limited payment collection agent. Your payment obligation to the restaurant is discharged when your payment succeeds.

7.3 **Fees.** Hungora may charge a convenience fee or platform fee on certain transactions. Any such fee, and applicable GST, will be shown clearly before you confirm payment. Hungora may introduce or revise fees for future transactions with prior notice on the Platform.

7.4 **Refunds.** Unless the checkout terms say otherwise, amounts paid for prepaid deals and bookings are non-refundable. A refund will be issued where:

- the Restaurant Partner cancels the booking, closes permanently or temporarily on the booked date, or withdraws the deal during its validity;
- the restaurant refuses to honour a valid, confirmed prepaid booking or Offer (verified by Hungora);
- you were charged twice or incorrectly because of a technical error.

7.5 Approved refunds are processed to the original payment method within [7–15] working days. Your bank's timeline for crediting it may vary. Convenience fees are refunded only if the refund is due to a restaurant or Hungora failure.

7.6 Do not pay the restaurant separately for an amount already paid through the Platform. Hungora is not responsible for payments made outside the Platform.

8. Offers, deals, wallet, rewards, referrals and partner offers

8.1 **Offers.** Each Offer has its own terms (validity, minimum bill, days, times, eligible items, participating outlets, maximum discount), shown on the Offer page. Unless stated otherwise, discounts apply to the eligible Bill amount, cannot be exchanged for cash, are not valid on takeaway or delivery, and cannot be combined with other restaurant, card or loyalty offers.

8.2 **Exclusive offers.** Offers marked "Hungora Exclusive" are funded by the Restaurant Partner, Hungora or a partner, as stated. The restaurant is responsible for honouring them at the table.

8.3 **Hungora Wallet and Rewards.** Diners may earn [points / cashback] on eligible bookings and payments, at rates shown in the app. Rewards:

- have no cash value and cannot be transferred, sold or withdrawn;
- expire [12 months after credit / after 6 months of no dining activity];
- may be reversed if credited in error or if the related booking is cancelled, refunded or found to be fraudulent.

8.4 **Bill upload.** Where rewards depend on a Bill upload, the image must be clear, show the bill number, restaurant name, date, time and amount, relate to a booking made on Hungora, and be uploaded within [7] days of dining. Handwritten or edited bills are not accepted.

8.5 **Referral programme.** You may invite friends who have never registered on Hungora. The referral reward of [₹ amount / points] is credited once the friend completes a qualifying first booking of at least [₹ amount]. Self-referrals, fake accounts and bulk or spam invitations are not permitted.

8.6 **Membership (if introduced).** Paid membership benefits, fees and rules will be governed by separate programme terms shown at purchase.

8.7 **Neighbourhood / Regional Partner offers.** Offers from banks, card issuers, brands and local partners are subject to that partner's terms and eligibility rules. The partner is responsible for its own benefit (for example, card cashback); Hungora only displays and facilitates it.

8.8 Hungora may change, suspend or withdraw any Offer, reward rate or referral programme at any time, and may cancel benefits obtained through misuse. Rewards already validly earned will be honoured until their expiry unless forfeited under Section 14.

9. Reviews, ratings and user content

9.1 Diners may post ratings, reviews, photos and comments ("User Content") about restaurants they have visited. Hungora may mark reviews linked to a verified Hungora booking as "Verified Diner".

9.2 User Content must be your own honest, first-hand experience. It must not be false, plagiarised, paid for, written by or for the restaurant or its competitors, or posted in exchange for a benefit that is not disclosed.

9.3 Photos must be clear, relate to the restaurant reviewed, and not include identifiable people without their consent.

9.4 User Content must not be abusive, defamatory, obscene, hateful, discriminatory, threatening, or contain personal data of others, promotional material, links or malware.

9.5 You keep ownership of your User Content. You grant Hungora a non-exclusive, royalty-free, worldwide, transferable and sub-licensable licence to host, display, reproduce, adapt and use it on the Platform and in Hungora's marketing, for as long as it remains on the Platform and for a reasonable period after for archived material.

9.6 Hungora may moderate, refuse, edit for format, or remove User Content that breaches these Terms or applicable law, and will act on valid takedown requests as required by the IT Rules, 2021. Views in User Content are those of the author, not Hungora.

9.7 Restaurant Partners may publicly respond to reviews but may not offer incentives to change or remove them.

10. Privacy and data sharing

10.1 Hungora collects and processes personal data in line with its [Privacy Policy] and the Digital Personal Data Protection Act, 2023. The Privacy Policy forms part of these Terms.

10.2 We share only the data needed to deliver the service:

- **Restaurant Partners**: your name, phone number, booking details and special requests, so they can honour your Reservation. A restaurant may use this to contact you about the booking; it may send you promotions only with your consent.
- **Payment gateways and banks**: to process payments and refunds.
- **Neighbourhood / Regional Partners**: only where you choose to use their offer and only the data needed to verify eligibility.
- **Service providers**: hosting, analytics, SMS/email and support vendors bound by confidentiality.
- **Authorities**: where required by law, court order or a lawful government request.

10.3 Hungora does not sell your personal data.

10.4 We use cookies, device identifiers and log data (IP address, device type, app version, usage patterns) to operate, secure and improve the Platform. Location data is used to show nearby restaurants only when you allow it.

10.5 You may access, correct, or request erasure of your personal data, and withdraw consent, as described in the Privacy Policy, by writing to our Grievance Officer (Section 17).

10.6 Only authorised Hungora personnel with a business need can access your data. We apply reasonable security practices but cannot guarantee that transmission over the internet is fully secure.

11. Communications

11.1 By registering, you agree to receive service messages about your account, bookings, payments, refunds and security by SMS, WhatsApp, email, push notification or call. These cannot be switched off while you have an active account.

11.2 Hungora may send promotional messages about Offers, new restaurants and events. You can opt out at any time through app settings, the unsubscribe link, or by writing to admin@hungora.com. Promotional calls and SMS will respect your DND (TRAI) preferences.

11.3 Communications from Restaurant Partners or partners about their own promotions are their responsibility.

12. Intellectual property

12.1 The Hungora name, logo, tagline ("Eat · Reserve · Save · Enjoy"), app design, software, text, graphics, restaurant data compilations and other content on the Platform (excluding User Content and Restaurant Partner material) belong to Hungora or its licensors and are protected by Indian and international IP laws. [Hungora™ / Registered]

12.2 Hungora grants you a limited, personal, revocable, non-exclusive, non-transferable licence to use the Platform for personal, non-commercial purposes in line with these Terms.

12.3 You may not copy, modify, distribute, sell, frame, scrape, reverse-engineer or create derivative works from any part of the Platform, or use Hungora's marks, without our prior written consent.

12.4 Restaurant names, logos and photos belong to the respective Restaurant Partners and are used with their permission.

12.5 If you believe content on the Platform infringes your intellectual property, send a notice to admin@hungora.com identifying the work, the exact URL or listing, your contact details, a good-faith statement that the use is unauthorised, and a statement that the notice is accurate and you are the rights owner or authorised to act for them. We will review and act on valid notices.

13. Prohibited conduct

When using the Platform, you must not:

1. make fake, speculative or bulk Reservations, or book tables to resell or block them;
2. create multiple or fake accounts, or use another person's account, phone number, payment instrument or identity;
3. misuse Offers, referrals, rewards or Bill uploads, including submitting edited, duplicate or unrelated bills;
4. post User Content that breaches Section 9, or harass, threaten or abuse restaurant staff, other Diners or Hungora support;
5. discriminate against any person on grounds such as religion, caste, race, gender, disability, sexual orientation or age;
6. upload viruses or harmful code, or interfere with, overload or disrupt the Platform or its servers;
7. scrape, crawl, deep-link, data-mine or use bots to access the Platform, or attempt unauthorised access, vulnerability scanning or penetration testing without written permission;
8. use the Platform for any commercial purpose, advertising, solicitation or spam without our written consent;
9. share any information that is unlawful, misleading, infringing, or that threatens the unity, integrity, security or public order of India, as listed in Rule 3(1)(b) of the IT Rules, 2021;
10. violate any applicable law, including food, liquor, tax and consumer laws.

14. Anti-fraud, suspension and termination

14.1 Hungora may investigate any activity that appears fraudulent, abusive or in breach of these Terms, including repeated booking-and-cancelling, repeated no-shows, reward or referral abuse, and chargeback misuse.

14.2 Where we reasonably believe a breach has occurred, we may, with or without prior notice: cancel affected bookings, reverse or forfeit rewards and referral credits, restrict booking or Offer access, suspend the account, or permanently close it.

14.3 Where practical, we will tell you the reason and give you an opportunity to respond through the grievance process in Section 17. Hungora's decision after review will be final, subject to your rights under applicable law.

14.4 You may close your account at any time from the app or by writing to support. Unused rewards lapse on closure. Paid amounts due to you under Section 7 will still be refunded.

14.5 Sections that by their nature should survive termination (payments owed, IP, liability, indemnity, governing law) will survive.

15. Disclaimers, limitation of liability and indemnity

15.1 **As-is service.** The Platform is provided on an "as is" and "as available" basis. Hungora does not guarantee uninterrupted, error-free or virus-free access, or that every restaurant, table or Offer will be available.

15.2 **Dining experience.** Because Hungora is an intermediary, it is not liable for the food, beverages, hygiene, allergic reactions, illness, injury, loss of belongings, service quality, waiting times, billing disputes, menu or price changes, or any other act or omission of a Restaurant Partner or its staff. Claims about these must be directed to the Restaurant Partner, with Hungora's assistance under Section 4.5.

15.3 **Partners and third parties.** Hungora is not liable for benefits, services or products provided by Neighbourhood / Regional Partners, payment gateways, or other third parties.

15.4 **Cap on liability.** To the maximum extent permitted by law, Hungora will not be liable for indirect, incidental, special, consequential or punitive damages, or loss of profit, data or goodwill. Hungora's total liability for any claim relating to the Platform is limited to the amount you paid to Hungora for the booking or transaction giving rise to the claim, or [₹1,000] where nothing was paid. Nothing in these Terms limits liability that cannot be limited under Indian law, including your rights under the Consumer Protection Act, 2019.

15.5 **Indemnity.** You agree to indemnify Hungora, its directors, employees and agents against claims, losses and costs (including reasonable legal fees) arising from your breach of these Terms, your User Content, your misuse of the Platform, or your violation of any law or third-party right.

16. Third-party links and AI-assisted features

16.1 The Platform may link to third-party websites, maps, payment pages or partner apps. Hungora does not control them and is not responsible for their content, privacy practices or services. Their own terms apply.

16.2 If Hungora offers AI-assisted features (for example restaurant recommendations, a chat assistant, or booking through a third-party AI assistant you authorise), bookings and actions made through them are treated as made by you. Please check details before confirming. Recommendations may be incomplete or inaccurate and are not endorsements.

17. Grievance redressal

17.1 For booking, payment or account issues, first contact Hungora Support: in-app Help, [admin@hungora.com]

17.2 If your issue is not resolved, or for complaints about content, privacy, or these Terms, write to our Grievance Officer, appointed under the IT Rules, 2021 and the Consumer Protection (E-Commerce) Rules, 2020:

Detail	Information
GRIEVANCE OFFICER	RAMYA D
GRIEVANCE EMAIL	admin@hungora.com
Hours	Monday–Friday, [10:00–18:00] IST

17.3 Please include your registered phone number, booking ID, restaurant name, date, a description of the issue, and any supporting documents.

17.4 We will acknowledge your complaint within 48 hours and aim to resolve it within one month of receipt, as required by law. Requests to remove unlawful content will be acted on within the timelines set by the IT Rules, 2021.

17.5 You may also approach the National Consumer Helpline (1915) or the consumer commissions under the Consumer Protection Act, 2019.

18. Amendments

18.1 Hungora may update these Terms, the Privacy Policy or programme terms from time to time. The "Last updated" date at the top will change when we do.

18.2 For material changes (for example new fees, changes to refunds, rewards or how we use personal data), we will notify you through the app, email or SMS at least [7] days before they take effect.

18.3 Continuing to use the Platform after changes take effect means you accept them. If you do not agree, you may stop using the Platform and close your account. Changes will not apply retroactively to bookings already confirmed.

19. Governing law, jurisdiction and general clauses

19.1 **Governing law.** These Terms are governed by the laws of India.

19.2 **Dispute resolution.** The parties will first try to resolve any dispute through the grievance process in Section 17. Unresolved disputes are subject to the exclusive jurisdiction of the courts at Chennai, Tamil Nadu, without affecting your right to approach a consumer commission where you reside under the Consumer Protection Act, 2019.

19.3 **Severability.** If any provision is found invalid or unenforceable, it will be limited to the minimum extent necessary and the rest of these Terms will remain in force.

19.4 **Waiver.** A delay or failure to enforce any right is not a waiver of that right.

19.5 **Assignment.** You may not transfer your rights under these Terms. Hungora may assign them to an affiliate or successor business, with notice to you.

19.6 **Force majeure.** Neither Hungora nor Restaurant Partners are liable for failures caused by events beyond reasonable control, such as natural disasters, epidemics, government orders, strikes, or network and power outages.

19.7 **Entire agreement.** These Terms, together with the Privacy Policy and any Offer or programme terms, form the entire agreement between you and Hungora regarding the Platform. If there is a conflict, the specific Offer or programme terms prevail for that Offer or programme.

Appendix:

Hungora section	Hungora approach
1. Introduction	IT Rules preamble plus defined terms
2. Intermediary role	Same intermediary stance, restaurant owns service
3. Accounts	18+ for paid bookings; one account
4. Restaurant responsibility	Restaurant liable; Hungora assists with complaints
5. Reservations	Confirmation, grace period, data sharing
6. Cancellation / no-show	Tiered no-show table, dispute window
7. Payments / refunds	Payment agent; broader refund triggers
8. Offers / rewards / referral	Placeholders for Hungora rates; partner offers
9. Reviews	Verified Diner tag; licence to Hungora
10. Privacy	DPDP Act 2023 alignment; sharing list
11. Communications	Service vs promotional split; DND
12. IP	Licence to use; IP notice process
13. Prohibited conduct	Booking-specific abuses added
14. Suspension	Graduated actions; chance to respond
15. Liability	Cap at transaction value; consumer law carve-out
16. Third parties / AI	Links plus AI-assisted booking
17. Grievance	Officer table, 48 h acknowledgement, 1 month resolution
18. Amendments	Advance notice for material changes
19. Governing law	Indian law; [Chennai] courts; no short claim bar